

20TRCV00065 20TRCV00065

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-05

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SBA%2CP%2C08%2F05%2F2026

Source SHA-256: ed5fdff3e9646f6f6b11691aee44c4dd0e4eae15638f4ad719dc2449c6901d63

Case Number: 20TRCV00065 Hearing Date: August 5, 2026 Dept: P

Motion for Attorney's Fees

Moving Party: Defendants LA Investment LLC and Peter Starflinger

Responding Party: Plaintiffs People of the State of California and City of Lawndale

RULING

The court considered the moving papers, opposition, reply, and supplemental briefs. Defendants' Motion for Attorney's Fees is GRANTED in the amount of \$293,491.50.

PROCEDURAL BACKGROUND

On January 17, 2020, Plaintiffs People of the State of California ex rel. Tiffany J. Israel, City Attorney for the City of Lawndale and the City of Lawndale (collectively, "the City") filed a complaint against Defendants LA Investment LLC, Peter Starflinger (collectively, "Defendants"), and DOES 1 through 10, inclusive, alleging three causes of action for: (1) public nuisance per se, (2) public nuisance, and (3) violation of state housing law—receivership.

On June 23, 2020, the City filed a first amended complaint ("FAC") against Defendants and DOES 1 through 10, inclusive, alleging two causes of action for: (1) public nuisance per se and (2) public nuisance.

On September 8, 2023, Defendant Starflinger filed a motion for summary judgment, or, in the alternative, summary adjudication of the City's claims in the FAC. On March 15, 2024, the court denied Defendant Starflinger's motion.

On January 19, 2024, Defendant LA Investment LLC filed a motion for summary judgment, or, in the alternative, summary adjudication. On March 15, 2024, the court denied Defendant LA Investment LLC's motion.

On September 25, 2025, the City filed a request for dismissal of the action without prejudice, which was entered on September 30, 2025.

On October 17, 2025, the City filed and served a notice of entry of dismissal.

On November 5, 2025, Defendants filed a proposed judgment which was granted by the court the same day.

On January 5, 2026, Defendants filed the instant motion. On March 6, 2026, the City filed an opposition. On March 12, 2026, Defendants filed a reply.

On March 19, 2026, in issuing an order regarding the instant motion, the court exercised its discretion and determined that Defendants are the prevailing parties and implemented fee shifting in Defendants' favor. The court ordered the City to file and serve billing records.

On May 1, 2026, the City filed a motion to seal portions of billing records, along with a notice of lodging exhibits conditionally under seal.

On July 10, 2026, Defendants filed a supplemental brief. On July 23, 2026, the City filed a supplemental brief in support of its opposition to Defendants' motion for attorney's fees.

FACTUAL BACKGROUND

The City alleges that on June 14, 2018, City Code Enforcement Officer Jamie Rodriguez ("Officer Rodriguez") reported to Defendants' property located at 14923 Larch Avenue in Lawndale, California (the "Property"), in response to a complaint about an unpermitted use of the garage as a dwelling unit. (FAC, ¶¶ 4, 15.) The City alleges that Officer Rodriguez inspected the Property and observed several conditions in violation of the Lawndale Municipal Code ("LMC") existing on the Property including unpermitted building alterations and patio cover additions, excess flatwork in the front yard setback, and unpermitted alterations to the City parkway and public right-of-way. (FAC, ¶ 15.) The City alleges that on June 27, 2018, Officer Rodriguez issued the City's First Notice of Violation to Defendants which listed violations of three sections of the LMC, followed by the City's Second Notice of Violation issued on September 12, 2018, and the City's Final Notice of Violation issued on January 28, 2019. (FAC, ¶¶ 16, 20-21.) The City further alleges that Officer Rodriguez spoke with Defendant Starflinger on more than one occasion regarding the LMC violations and repeatedly inspected the Property to confirm that the conditions on the Property remained in ongoing violation of the LMC. (FAC, ¶¶ 17-28.)

LEGAL STANDARD

The Lawndale Municipal Code provides:

"The prevailing party in any action, administrative proceeding, or special proceeding to abate a public nuisance...shall be entitled to recover its reasonable attorneys' fees. Recovery of attorneys' fees shall be limited to those actions or proceedings in which the city elects, at the initiation of that individual action or proceeding, to seek recovery of its own attorneys' fees. In no action or proceeding shall an award of attorneys' fees to a prevailing party exceed the amount of reasonable attorneys' fees incurred by the city in the action or proceeding."

(City of Lawndale Municipal Code, Section 8.24.200(A).)

"It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion." (Melnik v. Robledo (1976) 64 Cal.App.3d 618, 623-624.) The fee setting inquiry in California ordinarily "begins with the 'lodestar' [method], i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (See Serrano v. Priest (1977) 20 Cal.3d 25, 49

(discussing factors relevant to proper attorneys' fees award).) The factors considered in determining the modification of the lodestar include "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, and (4) the contingent nature of the fee award." (*Mountjoy v. Bank of Am.* (2016) 245 Cal.App.4th 266, 271.)

In challenging attorneys' fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. (*Premier Medical Management Systems, Inc. v. California Ins. Guaranty Assoc.* (2008) 163 Cal.App.4th 550, 564.) General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice. (*Ibid.*)

DISCUSSION

Moving Party's Argument

Defendants argue that they are the prevailing parties, such that they are entitled to attorney's fees pursuant to LMC Section 8.24.200. Defendants argue that they are the prevailing parties based on the judgment entered by the court on November 5, 2025, awarding Defendants costs and providing that Defendants are the "prevailing parties." Defendants argue that Defendant Starflinger incurred legal fees of \$484,480.00 at the lodestar rate and appears to request that the court issue sanctions in that amount.

Opposing Party's Argument

In opposition, the City argues that the instant motion is procedurally improper because it was untimely filed based on when the City served its Notice of Entry of Dismissal. The City further argues that Defendants are not the prevailing parties and thus are not entitled to attorney's fees under LMC Section 8.24.200, because a finding that Defendants are the prevailing parties for purposes of statutory costs does not necessarily resolve the "prevailing party" inquiry for purposes of attorney's fees. The City next argues that on a practical level, Defendants did not prevail in this action because the court previously denied Defendants' motion for summary judgment and summary adjudication, and because the City was positioned to prevail at trial because Defendants waived their only viable affirmative defense to the City's patio-cover claims.

The City further contends that Defendants failed to establish compliance with LMC Section 8.24.200, which provides that an award of attorney's fees is not to exceed the amount of reasonable attorney's fees incurred by the City in the action. (LMC Section 8.24.200(A).) The City argues that Defendants never attempted to access the City's billing information to determine the statutory "cap" on attorney's fees. The City further argues that Defendants' counsel's claimed hours are disproportionate to the scope of the litigation and that Defendants' counsel Theodore S. Wolter's claimed hourly rate is unreasonable.

Reply Argument

In reply, Defendants first argue that the instant motion is timely because they timely filed a memorandum of costs within 15 days after the date that the Notice of Entry of Dismissal was filed and served, and because Defendants argue that the Notice of Entry of Judgment triggered the start of the 60-day period to file this motion. Defendants reiterate their argument that they are the prevailing parties for all purposes because Defendants achieved all of their litigation objectives while the City achieved none, because the court rejected the City's request to amend the judgment to narrow the "prevailing party" determination to only the entitlement to costs. Defendants further argue that the City was not positioned to prevail at trial and that Defendants did not waive any defenses. Next, Defendants argue that the City had the burden of demonstrating the reasonable fees it incurred pursuant to LMC Section 8.24.200. Defendants further argue that Theodore S. Wolter's claimed hourly rate is reasonable because of his experience.

Moving Party's Supplemental Brief

Defendants argue that the Aleshire & Wynder's billing records reflect that substantial attorney work was performed by a paralegal, because most of the billing entries prior to the City initiating its action against Defendants are billed at a paralegal rate.

Opposing Party's Supplemental Brief

The City argues that Defendants' motion fails because Defendants have not met their burden of establishing the mandatory ceiling for the recovery of attorney's fees. The City argues that Defendants have only filed a supplemental brief regarding Defendants' motion for sanctions, but have provided no supplemental brief in support of the instant motion identifying a figure for the City's reasonable attorney's fees, a proposed ceiling, or an applicable rate. The City argues that Defendants' request for \$484,480.00 in fees is unreasonable because LMC Section 8.24.200 forecloses any award exceeding \$286,980.00. The City argues that the ceiling on Defendants' recovery of fees is the City's reasonable attorney's fees actually incurred in this action, which totals \$286,980.00, according to the lodged billing records. Finally, the City argues that any fee award to Defendants runs against the City alone, as LMC Section 8.24.200 does not establish any basis for an award against the City's counsel.

Request for Judicial Notice

The City requests that the court take judicial notice of the following records: (1) the grant deed to Defendant LA Investment LLC, recorded in the County of Los Angeles on August 30, 2013; (2) the court's Statement of Decision regarding Defendant Starflinger's motion for summary judgment and summary adjudication, issued March 20, 2024; (3) the court's Statement of Decision regarding Defendant LA Investment LLC's motion for summary judgment and summary adjudication, issued March 20, 2024; (4) the Notice of Entry of Dismissal and Proof of Service filed with the court on October 17, 2025; and (5) the amended answer to the FAC filed with the court on November 4, 2020.

Pursuant to Evidence Code Section 452(h), the court may take judicial notice of "[f]acts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy." Therefore, the court GRANTS the City's request for judicial notice of the grand deed to Defendant LA Investment LLC, recorded on August 30, 2013.

Pursuant to Evidence Code Section 452(d), the court may take notice of its own records. Therefore, the court GRANTS the City's request for judicial notice of the courts Statements of Decision issued on March 20, 2024, the Notice of Entry and Proof of Service filed on October 17, 2025, and the amended answer to the FAC filed on November 4, 2020.

Accordingly, the City's request for judicial notice is GRANTED in its entirety.

Merits of the Motion

A. Timeliness of Defendants' Motion for Attorney's Fees

A notice of motion for attorney's fees must be served and filed within the time for filing a notice of appeal under California Rule of Court 8.104. (Cal. Rules of Court, rule 3.1702(b)(1).)

Under Rule of Court 8.104, the notice of appeal must be filed "before the earliest of: (A) 60 days after the superior court clerk serves on the party filing the notice of appeal a document entitled 'Notice of Entry' of judgment or a filed-endorsed copy of the judgment, showing the date either was served; (B) 60 days after the party filing the notice of appeal serves or is served by a party with a document entitled 'Notice of Entry' of judgment or a filed-endorsed copy of the judgment, accompanied by proof of service; or (C) 180 days after entry of judgment." (Cal. Rules of Court, rule 8.104(a)(1)(A)-(C).)

“For good cause, the trial judge may extend the time for filing a motion for attorney’s fees in the absence of a stipulation or for a longer period than allowed by stipulation.” (California Rules of Court, rule 3.1702(d).) The court may grant relief under rule 3.1702(d), even if the request for relief was made after the deadline for filing the motion for attorney’s fees has passed. (See *Robinson v. U-Haul Co. of California* (2016) 4 Cal.App.5th 304, 327.)

A voluntary dismissal is “effectively a ‘judgment’ within the meaning of California Rules of Court, [rule 8.104],” such that “the time for filing a motion of attorney fees commences upon service of notice of entry of dismissal.” (*Sanabria v. Embrey* (2001) 92 Cal.App.4th 422, 427.) Accordingly, the “60-day time limit [of rule 3.1702] commences to run at notice of entry of judgment or dismissal.” (*Id.* at 429.)

Here, the City correctly notes that Defendants’ instant motion was not timely filed. The City filed a request for dismissal of its action without prejudice on September 25, 2025, which the court entered on September 30, 2025. Soon after, on October 17, 2025, the City filed and served a Notice of Entry of Dismissal. Pursuant to *Sanabria*, the time period in which Defendants could properly file a motion for attorney’s fees began on October 17, 2025, the date on which the City served its notice of entry of dismissal. (*Sanabria*, supra, 92 Cal.App.4th at 427.) However, Defendants did not file the instant motion until January 5, 2026, 80 days later.

Therefore, Defendants’ motion for attorney’s fees was filed 20 days too late, pursuant to California Rules of Court 3.1702 and 8.104.

However, the court exercises its discretion to grant relief, as the court has previously found that Defendants are the prevailing parties and has implemented fee shifting in Defendants’ favor.

B. Entitlement to Attorney’s Fees: “Prevailing Party” Inquiry

Where the statute under which attorney’s fees are sought does not define “prevailing party,” the court “should adopt a pragmatic approach, determining prevailing party status based on which party succeeded on a practical level.” (*Graciano v. Robinson Ford Sales, Inc.* (2006), 144 Cal.App.4th 140, 150.) “Under that approach, ‘the court exercises its discretion to determine the prevailing party by analyzing which party realized its litigation objectives.’” (*Id.*, quoting *Castro v. Superior Court* (2004), 116 Cal.App.4th 1010, 1019.)

Here, the applicable LMC Section 8.24.200 does not provide any definition of “prevailing party.” On March 19, 2026, the court issued an order in which the court exercised its discretion to find that Defendants are the prevailing parties and implemented fee shifting in Defendants’ favor.

Therefore, the court has previously concluded that Defendants are the “prevailing parties” and are thus entitled to the recovery of attorney’s fees.

C. Reasonableness of Fees

LMC Section 8.24.200(A) provides that an award of attorney’s fees to a prevailing party is not to exceed the amount of reasonable attorney’s fees incurred by the City in the action. Here, then, Defendants’ recovery of attorney’s fees is limited by the amount of fees reasonably incurred by the City in this action, rather than being based solely on the hours billed by Defendants’ counsel. The court interprets the statute to impose a “cap” on recoverable fees. However, such a cap is qualified by the term “reasonable” such that the court engages in a three-step process when determining the amount of fees to be awarded to a non-City party. First, the court determined what fees were actually incurred by the City. Next, the court assesses whether those charged fees are reasonable for the work provided and conducts a lodestar analysis thereon. Finally, the court determines whether the non-City party who is entitled to fees reasonably incurred fees in an amount equal to or greater than the lodestar amount previously calculated by the court.

Counsel for the City, Brandon A. Sanchez ("Sanchez") is a partner with Burke, Williams & Sorensen, LLP ("Burke"). (Sanchez Decl., ¶ 1.) Sanchez declares that Burke billed the City at "contracted municipal rates. Attorney time was billed at \$252 to \$281 per hour over the course of the engagement, and paralegal time at \$120 to \$134 per hour. These are the rates Burke charges the City of Lawndale and rates within the range Burke charges its municipal clients generally for code enforcement litigation of this kind." (Sanchez Decl., ¶ 4.) Sanchez declares that in total, Burke billed 76.1 hours and \$196,565.00 in fees. (Sanchez Decl., ¶ 5.) Sanchez declares that approximately 30.7 hours, equivalent to approximately \$8,600.00 in fees, reflect services provided after the City's dismissal of this action on September 25, 2025. (Sanchez Decl., ¶ 6.)

Next, Sanchez declares that according to Aleshire & Wynder's billing records, Aleshire & Wynder billed a total of 495.7 hours and \$95,660.00 in fees. (Sanchez Decl., ¶ 7.) Sanchez declares that each Aleshire & Wynder attorney who billed in this matter billed at a single, blended rate of \$205 per hour, and both paralegals billed at a rate of \$120 per hour. (Sanchez Decl., ¶ 8.) Sanchez declares that 31.1 hours, equivalent to \$5,245.00 in fees, reflects services provided before the date the City filed its action on January 17, 2020. (Sanchez Decl., ¶ 9.)

Overall, Sanchez declares that the "blended rate across both firms and the entire matter is at most \$232.52 per hour," and of the firms' combined 1,256.8 total hours billed, 1,125.8 hours were billed by attorneys and 131.0 hours were billed by paralegals, equivalent to \$276,023.00 and \$16,202.00 in fees, respectively. (Sanchez Decl., ¶ 12.)

Sanchez declares that the billing rates reflected in the City's counsel's billing records are "representative of, the rates charged by experienced outside counsel handling municipal code enforcement litigation in Los Angeles County during the relevant period (2019-2026). (Sanchez Decl., ¶ 19.) Sanchez declares that Burke and Aleshire & Wynder each "set their rates independently, were retained years apart, and arrived at figures within the same narrow band for the same type of work." (Sanchez Decl., ¶ 19.)

The court finds that counsel's hourly rates are reasonable and has reviewed the City's counsel's billing records to determine the total amount of attorney's fees incurred by the City. The court has confirmed that Burke billed a total of \$196,565.00 in fees. (Murphy Decl., Exh. A.) The court has also independently confirmed that Aleshire & Wynder billed a total of \$95,660.00. (Manuelian Decl., Exh. C.) In total, then, the City's counsel billed \$292,225.00 in attorney's fees.

The court next addresses Defendants' argument that Aleshire & Wynder's billing records reflect that substantial attorney work performed prior to the City's filing of its complaint was billed at a paralegal rate. The court has identified multiple entries billed at a paralegal rate of \$120 per hour for attorneys' work dated prior to the City's filing of its complaint on January 17, 2020. For example, Aleshire & Wynder billed at a rate of \$120 per hour for preparing for and appearing at office conferences, "strategiz[ing] next course of action," "strategiz[ing] handling of litigation matter," "strategiz[ing] violations for inclusion in civil abatement complaint and necessary corrective action for same," "strategiz[ing] inclusion of receivership action and necessary notice to property owner and interested parties," and revising the complaint. (Manuelian Decl., Exh. C, pp. 1-3.)

In total, the court has identified fourteen entries billed at \$120 per hour prior to the City's filing of its complaint, with identification numbers 2737712, 2749924, 2749959, 2752096, 2752110, 2749329, 2749350, 3097370, 3097373, 3095233, 3095234, 3095241, 3095242, and 3098606, which should have been billed at the attorney rate of \$205 per hour. (Manuelian Decl., Exh. C.) The total time billed based upon these fourteen entries is 5.6 hours, equivalent to \$672.00 in paralegal's fees and \$1,148.00 in attorney's fees. Therefore, the court finds that the ceiling for Defendants' recovery of fees must be raised by \$476.00.

The court also reviewed the remainder of Aleshire & Wynder's billing records in this matter and has identified nineteen additional entries improperly billed at the paralegal rate of \$120 per hour for attorney's work, with the following identification numbers: 3097818, 3098713, 3097659, 3097660, 3097688, 3098794, 3095687, 3095692, 3095704, 3095705, 3095708, 3095723, 3102987, 3102817, 3093731, 3093743, 3099633, 3099640, and 3099618. (Manuelian Decl., Exh. C.)

These entries were billed for work described as "strategiz[ing] next course of action in serving Defendant," "analyz[ing] Defendant's involvement in enforcement efforts against individual owner of corporate defendant," "strategiz[ing] response to

Defendant's request to meet and confer and anticipated demurrer," "strategiz[ing] next course of action in civil litigation," "analyz[ing] status of civil litigation," "review[ing] strategies for proceeding with case with limited budgetary parameters," "review[ing] analysis and strategy," "strategiz[ing] allegations to be included in First Amended Complaint," "strategiz[ing] responses to discovery and litigation strategy," "review[ing] and analyz[ing] strategy for responses to discovery," "analyz[ing] drafted discovery response," "analyz[ing] Defendant's response to meet and confer communications," "strategiz[ing] next course of action regarding discovery," "telephone call with attorney Moura regarding trial testimony and Evidence Code 402 hearing," "analyz[ing] court's ruling on affirmative defenses and strategiz[ing] next course of action," "strategiz[ing] with City Attorney and City prosecutors," and "strategiz[ing] timeline for production of documents." (Manuelian Decl., Exh. C.) The court finds that these entries facially concern attorney work and not work of a paralegal.

The total time billed based upon these additional nineteen entries is 9.3 hours, equivalent to \$1,116.00 in paralegal's fees and \$1,906.50 in attorney's fees. Therefore, the court finds that the ceiling for Defendants' recovery of attorney's fees must be raised by an additional \$790.50.

The court has taken judicial notice of its entire file. This case was litigated for over five years with many significant motions as well as trial preparation. The court finds that the hourly rates of Plaintiff's counsel were reasonable for the work being performed and that the hours were reasonably billed in the course of litigation. Therefore, the total amount of attorney's fees to which Defendant would reasonably be entitled is \$293,491.50, which combines the City's \$292,225.00 in attorney's fees billed and the \$1,266.50 in fees to account for the entries in Aleshire & Wynder's billing records which were improperly billed at the paralegal rate.

Finally, the court turns to the Defendant's request for attorney's fees to determine whether Defendants reasonably incurred attorney's fees in at least the amount reasonably incurred by the City.

The court has reviewed the declarations submitted by Defendants regarding the billing by their attorneys. The court finds that the Wolter declaration sufficiently provides a basis for both the hourly rate of counsel, which the court finds to be reasonable, and the number of hours expended, which the court finds to be reasonable. The court finds that the declaration supports a reasonable award of fees in excess of the statutory cap discussed above.

Accordingly, Defendants' motion for attorney's fees is GRANTED in the reduced amount of \$293,491.50 pursuant to the Lawndale Municipal Code.

CONCLUSION

Based on the foregoing, Defendants' Motion for Attorney's Fees is GRANTED in the amount of \$293,491.50.

Prevailing party on motion is ordered to give notice of ruling.